

19SMCV02073 19SMCV02073

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Case Number: 19SMCV02073 Hearing Date: July 22, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

GEORGE C. KOPEK, et al.,

Plaintiff,

v.

MICHAEL BAHNA, et al.,

Defendants.

Case No.:

19SMCV02073

Hearing Date: 07/22/26

Trial Date:

None

[TENTATIVE] RULING RE:

MOTION TO TAX COSTS

Background

This case involves a dispute over parking spaces. Plaintiffs Toni Kopek and Richard Lee (collectively, "Plaintiffs") claim ownership of two parking spaces, G114 and G116. They contend Defendants Bagram and Susanna Mardirossian (the "Mardirossians") are illegally occupying the spaces.

The operative complaint alleges claims for ejectment, preliminary injunction, trespass, nuisance, quiet title and enforcement of "governing documents". The Mardirossians counter-sued, alleging three causes of action for: (1) adverse possession, (2) prescriptive easement, and (3) declaratory relief.

The Court granted summary adjudication in favor of Plaintiffs on the Mardirossians' second cause of action for prescriptive easement and in favor of Lee on the Mardirossians' first cause of action for adverse possession. The Court then granted judgment on the pleadings in favor of Lee on the Mardirossians' entire cross-complaint.

The Court then severed and tried separately the remaining causes of action in the cross complaint. After a bench trial, the Court ruled in favor of Plaintiffs and dismissed the counterclaims.

The Court then set a jury trial for Plaintiffs' claims for ejectment, trespass and nuisance. The parties thereafter waived their rights to a jury trial, and the Court set a bench trial. Defendant stipulated that for purposes of this second trial, the only remaining issue to be tried is Plaintiffs' claims for damages, thereby stipulating that ownership and possession was not in dispute.

After Plaintiffs' opening arguments, the Court granted nonsuit in favor of Defendants because Plaintiffs' opening statement failed to proffer any facts to support a claim that any conduct, actions or inactions by Defendants was a substantial factor in causing harm or damages to Plaintiffs, that Plaintiffs suffered harm or damages, or a measure for those damages.

On May 12, 2026, the Court entered judgment in favor of Plaintiffs and against Mardirossians.

On June 3, 2026, Plaintiffs filed a Memorandum of Costs seeking costs of \$28,436.39.

On June 10, 2026, Mardirossians filed the instant motion to tax costs.

On July 9, 2026, Plaintiffs filed their opposition.

On July 15, 2026, Mardirossians filed their reply.

Legal Standard

“The right to recover costs under California law is governed by statute. [Citation.] Code of Civil Procedure section 1032, subdivision (b), provides that costs are to be awarded to a prevailing party as a matter of right.” (Smock v. State of California (2006) 138 Cal.App.4th 883, 889.) “Code of Civil Procedure section 1033.5 sets forth the items that are and are not allowable as the costs recoverable by a prevailing party “as a matter of right.” [Citations.]” (Rojas v. HSBC Card Services Inc. (2023) 93 Cal.App.5th 860, 892 (Rojas).) “The statute ... [also] authorizes the trial court in its discretion to award or deny an item of costs not mentioned in [the statute].’ [Citations.]” (Ibid.; Code Civ. Proc., § 1033.5, subd. (c)(4).)

“All costs, whether expressly permitted under [Code of Civil Procedure] section 1033.5, subdivision (a) or awarded in the trial court's discretion pursuant to section 1033.5(c)(4), must be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” (§ 1033.5, subd. (c)(2)) and “reasonable in amount” (§ 1033.5, subd. (c)(3)).’ [Citation.]” (Rojas, supra, 93 Cal.App.5th at p. 892.)

A prevailing party who claims costs in a civil action must serve and file a memorandum of costs. (Cal. Rules of Court, rule 3.1700(a)(1).) “Unless objection is made to the entire cost memorandum, [a] motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.” (Cal. Rules of Court, rule 3.1700(a)(2).)

When ruling on motions to strike

or tax costs, trial courts employ a burden-shifting framework. “If items on a memorandum of costs appear to be proper charges on their face, those items are prima facie evidence that the costs, expenses, and services are proper and necessarily incurred.’ [Citations.] ‘The burden then shifts to the objecting party to show them to be unnecessary or unreasonable.’ [Citation.] ‘[M]ere statements’ in a motion to strike and attorney declaration ‘are insufficient to rebut the prima facie showing.’ [Citation.]” (Rojas, supra, 93 Cal.App.5th at p. 896.)

Discussion

The Mardirossians move to strike several costs in Plaintiff’s Memorandum of Costs. The Court discusses the defendants’ arguments in the order in which they appear in the motion.

a.

Request to Tax \$1,027.50 From Filing and Motion
Fees Incurred Against Casa Gateway

The Mardirossians move to strike motion and filing fees of \$1,027.50 that Plaintiffs incurred while prosecuting their claims against Defendant Casa Gateway. However, because motion and filing fees are allowable costs under Code of Civil Procedure section 1033.5 (“Section 1033.5”), subdivision (a)(1), and Plaintiffs’ Memorandum of Costs is verified, the burden is on the moving defendants to show why those costs are unnecessary and unreasonable.

The Mardirossians argue that those costs are not properly claimed against them because: “Defendant Casa Gateway was sued on separate and distinct theories of liability. The Mardirossian Defendants were not jointly and severally liable for the conduct of Defendant Casa Gateway. Moreover, the Kopek/Lee Plaintiffs expressly waived their right to claim costs when they dismissed Casa Gateway. ([Motion, Declaration of Adam Feit (“Feit Decl.”), ¶ 5; Exh. 3], Request for Dismissal filed 5/8/25; [‘ ... each party bear own costs.’].) These are costs incurred litigating Casa Gateway, and are not fairly borne against the Mardirossian Defendants. These costs, totaling the sum of \$1,027.50, should be taxed.” (Motion, p. 10:1-8 [bold emphasis removed].)

According to case law, “one unsuccessful defendant has been held not liable for costs incurred by a second defendant who was successful against the plaintiff, where the unsuccessful defendant neither brought the successful one into the case, nor was responsible for the plaintiff having named the successful defendant as a party.” (Transamerica Title Ins. Co. v. Green (1970) 11 Cal.App.3d 693, 704 [italics added].)

Here, Plaintiffs have neither argued nor shown that the Mardirossians brought Casa Gateway into the case or were responsible for causing Plaintiffs to add that defendant as a party in this case.

In their opposition, Plaintiffs argue that: “[Mardirossians] had named Casa Gateway as a cross-defendant, asserted numerous equitable defenses relying on [Casa Gateway] in support, and relied on Casa Gateway’s governing documents to assert their own claims to the garage spaces. Prevailing in motion for summary adjudication against [Casa Gateway] would not only confirm the validity of plaintiffs’ causes of action against [Mardirossians], but would establish diligence and refute claimed equitable defenses, including laches, asserted by [Mardirossians], but would establish diligence and refute claimed equitable defenses, including laches, asserted by [Mardirossians].” (Opposition, pp. 7:25-8:6.)

However, Plaintiffs have not cited (and the Court has not found) any law that holds those facts are sufficient to allow Plaintiffs to recover from Mardirossians the costs they incurred against Casa Gateway.

In addition, as the Mardirossians argue, Plaintiffs’ operative pleading, the First Amended Complaint (“FAC”), asserted distinct causes of action against Casa Gateway that they did not assert against the Mardirossians. The FAC asserted the first (1st) cause of action for ejectment, second (2nd) cause of action for preliminary injunction, third (3rd) cause of action for ejectment, fourth (4th) cause of action for preliminary injunction, fifth (5th) cause of action for trespass, sixth (6th) cause of action for trespass, seventh (7th) cause of action for nuisance, eighth (8th) cause of action for nuisance, ninth (9th) cause of action for quiet title, and tenth (10th) cause of action against the Mardirossians

and Does 1 through 20 only. The FAC then asserted the eleventh (11th) cause of action for enforcement of governing documents and twelfth (12th) cause of action for breach of fiduciary duties against Casa Gateway and Does 1 through 20 only. Other than making conclusory arguments, Plaintiffs have not shown how prevailing on their motion for summary judgment against Casa Gateway assisted them in prevailing against the Mardirossians when the claims they asserted against the latter were substantially different from the ones they asserted against Casa Gateway. Further, while it is true that the Mardirossians, in their operative Second Amended Cross-Complaint, the Mardirossians asserted only one claim, the third (3rd) cause of action for declaratory relief, against both Casa Gateway and Plaintiffs, that fact alone is not sufficient to require the Mardirossians to pay the costs incurred against Casa Gateway.

Plaintiffs also contend: "Where a prevailing party incurred costs jointly while litigating against a co-defendant who later settled before judgment, the court apportions those costs between the remaining parties based on the reason the costs were incurred and whether they were reasonably necessary to the prevailing party's conduct of the litigation against the non-settling defendant. ([*Charton v. Harkey* (2016) 247 Cal.App.4th 730, 743–745 (*Charton*)]; *Fennessy v. DeLeuw-Cather Corp.* (1990) 218 Cal.App.3d 1192, 1196 [*Fennessy*].)" (Opposition, p. 4:13-18.)

However, the principles articulated in *Charton* and *Fennessy* do not apply here because Plaintiffs are not seeking to recover costs that they incurred jointly with non-prevailing parties; they are seeking to recover costs incurred against one defendant from another non-prevailing defendant. (See *Charton*, *supra*, 247 Cal.App.4th at pp. 743–744 ["When a prevailing party has incurred costs jointly with one or more other parties who are not prevailing parties for purposes of an award of costs, the judge must apportion the costs between the parties" [based on the reason the costs were incurred and whether they were reasonably necessary to the conduct of the litigation by the jointly represented party who prevailed].'] [Citations.] For example, in *Fennessy*, six jointly represented defendants moved for summary judgment, but only one prevailed and obtained a judgment in his favor. That defendant then sought to recover all costs incurred by the jointly represented defendants, including the nonprevailing defendants"; *id.* at p. 745 ["Here [in *Charton*], the trial court made an across-the-board allocation based on the number of

jointly represented defendants, awarding Harkey 25 percent of all costs defendants incurred because she was one of four jointly represented defendants. The court erred because it failed to apply the proper legal standards in making the allocation"].)

Lastly, as Mardirossians argue, Plaintiffs and Casa Gateway's Request for Dismissal specifically stated that the FAC and Casa Gateway's Cross-Complaint were dismissed with prejudice and that "each party [were to] bear own costs." (Request for Dismissal, filed May 8, 2025, p. 1, Item1b(6).) Plaintiffs argue that the costs waiver "run[s] between [them] and Casa Gateway alone" and "has no bearing on Plaintiffs' right to recover costs from the Mardirossian Defendants ..." is not supported by any law.

For those reasons, the request to tax \$1,027.50 from filing and motion fees incurred against Casa Gateway is GRANTED.

b.

Request to Tax \$6,200.78 From Deposition Costs Incurred Against Casa Gateway

The Mardirossians seek to strike the following costs from the depositions of officers and agents of Defendant Casa Gateway: (a) \$1,173.97 for the deposition of Lisa Borja on October 25, 2021; (b) \$1,514.74 and \$1,631 for the depositions of Melissa Campbell on November 1, 2021, and December 7, 2021, respectively; and (c) \$1,881.17 for the deposition of Norman Helgeson on April 5, 2022, for total costs of \$6,200.78. Deposition costs are allowable under Section 1033.5(a)(3). Therefore, the burden is on defendants to show the above costs were unnecessary or unreasonable.

The defendants argue that none of those costs were used to prosecute Plaintiffs' claims against Mardirossian Defendants.

However, the Court finds that Plaintiffs have established that the deposition costs were necessary and reasonable. Plaintiffs argue that Campbell was listed as a trial witness in Phase II of trial and she communicated with the parties on all matters related to this matter from June 2016 through the commencement of this litigation. (Opposition, p. 6:14-26.) In their motion for summary adjudication against the Mardirossians, Plaintiffs cited from the deposition transcripts of Norman Helgeson. (Opposition, p. 6:4-6.) Lastly, Borje

was the President of Casa Gateway at the time of relevant discovery including the formation of defining condominium plans. (Opposition, p. 7:1-14.)
Mardirossians have not disputed those facts in their reply.

Therefore, the request to tax \$6,200.78 from deposition costs in Plaintiffs' Memorandum of Costs is DENIED.

c.

Request to Tax \$90 of Service of Process Costs Incurred Against Casa Gateway

The
request to tax \$90 of service of process costs incurred against Casa Gateway is GRANTED for the same reasons the Court has granted the request to tax the motion and filing fees incurred against that party.

d.

Request to Tax \$1,026.95 Incurred for Models and Enlargements

Models

and the enlargements of exhibits are allowable costs under Section 1033.5
"if they were reasonably helpful to aid the trier of fact." (Code Civ. Proc., § 1033.5, subd. (a)(13).)

The

Mardirossians seek to tax the following costs for models and enlargements totaling \$1,026.95: (a) \$130.70 for Guru Printing from April 24, 2025; (b) \$201.94 for Guru Printing on May 13, 2025; (c) \$200.20 for Fiverr/Enlargements April 21 and 28, 2025; (d) \$27.10 for Fiverr on May 8 and 10, 2025; (e) \$370.96 for Office Depot/Prep Exh Trial Binder for May 15 and 17, 2025; and (f) \$96.05 for Staples/Prep Exhibits and Trial Binders for May 15 and 16, 2025.

The Mardirossians

argue that those costs were not helpful to aid the trier of fact because those models and enlargements "were not presented at trial, nor relied on by the trier of fact (here, the Court). The Court determined the Phase I trial based on the parties['] declarations and exhibits. The Phase II trial ended in a nonsuit after the Plaintiff's opening statement." (Motion, p. 12:3-7.)

In opposition,

Plaintiffs cite *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (*Ladas*) for the proposition that "reasonableness

[is] assessed as of the time the cost was incurred[.]” (Opposition, p. 10:1-3.)

Plaintiffs argue that, here, the above “costs were incurred in good-faith preparation for a contested Phase II trial that Plaintiffs reasonably anticipated would proceed to the presentation of evidence” (Opposition, p. 9:24-27.)

However, the Ladas

court held that the costs for trial exhibits, blowups, and transparencies should have been taxed because the case was dismissed before trial and, therefore, the party claiming the costs “failed to qualify for recovery of exhibit costs under [the] standard [in the statute above, i.e., that such costs be reasonably helpful to aid the trier of fact].” (Ladas, supra, 19 Cal.App.4th at p. 775.)

Here, the models

and enlargements were not helpful to the trier of fact (i.e., the Court) because they were not presented to the Court. In addition, even if the Court were to consider awarding such costs under its discretionary authority, Plaintiffs have failed to show that those “costs were reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2).)

Therefore,

the request to tax

\$1,026.95 from models and enlargements in Plaintiffs’ Memorandum of Costs is GRANTED.

e.

Request to Tax \$167.97 Incurred for Electronic Filing Fees Against Casa Gateway

The

Mardirossians also seek to tax costs of \$167.97 from the filing fees that Plaintiffs incurred against Casa Gateway, arguing that such costs are solely related to Plaintiffs’ claims against Casa Gateway. (Motion, p. 12:12-28 [listing the costs at issue].) Plaintiffs’ opposition does not dispute that those costs were incurred solely against Casa Gateway.

The

request to tax \$167.97 of electronic filing fees incurred against Casa Gateway is GRANTED for the same reasons the Court has granted the request to tax the

motion and filing fees incurred against that party.

f.

Request to Tax \$2,406.43 for Mediation and Recording Lis Pendens

The Mardirossians seek to tax \$2,406.43 of mediation and recording lis pendens costs, correctly arguing that such costs are not expressly allowed by Section 1033.5. (Motion, p. 13:11-21 [listing the mediation and lis pendens costs at issue].) They argue that the Court should not exercise its discretion to grant such costs because “Plaintiffs have not shown that the unsuccessful mediation was a reasonably necessary expense that should be fairly borne by the Mardirossian Defendants.” (Motion, p. 13:25-27.)

However, as Plaintiffs argue: “Mediation of this complex, multi-phase real property dispute – involving claims of adverse possession, prescriptive easement, ejectment, trespass, and quiet title – was a reasonable step toward resolving the litigation without further expenditure of court resources, and the Mardirossian Defendants participated in that mediation.” (Opposition, p. 10:19-23.) In addition: “Recording a lis pendens is a statutory prerequisite to a quiet title action (Code Civ. Proc., § 761.010) and was necessary to protect Plaintiffs’ interest in the property throughout this six-and-one-half-year litigation; the withdrawal cost was likewise necessary once the litigation concluded. Both costs were [thus] reasonably necessary to the conduct of litigation and should not be taxed.” (Opposition, pp. 10:24-11:2.) The Court exercises its discretion to award the mediation and recording of lis pendens costs.

Therefore, the request to tax \$2,406.43 of mediation and recording of lis pendens costs is DENIED.

g.

Request

to Tax \$103.40 for the LASC Online Document Access

Plaintiffs seek to recover \$103.40 for using the Superior Court of California, County of Los Angeles’s online system to access documents.

The Mardirossians move to tax those costs, arguing that, under Section 1033.5(b), investigation expenses and photocopy charges are not allowable as costs unless expressly authorized by law. They argue that the

costs for online document access are akin to investigative and photocopying costs because those costs were incurred for the purchase of documents from the Court's online system.

Plaintiffs argue that those costs should not be taxed because they were incurred to obtain "filed court documents ... not private investigation or the photocopying of third-party documents that the statute excludes." (Opposition, p. 11:9-11.)

However, the statute does not carve out exceptions for "private investigations" and "third-party documents." It only states that "[i]nvestigation expenses in preparing the case for trial," and "photocopying charges ..." are not allowed as costs except when expressly authorized by law. Plaintiffs have not cited any law that expressly allows them to recover costs for obtaining photocopies of court records.

Therefore, the request to tax \$103.40 for documents retrieved through the "LASC Online Document Access" is GRANTED.

h.

Request

to Tax \$583.75 for Personal Service

Finally, the Mardirossians move to tax \$583.75 of personal service costs arguing that (1) the costs incurred to serve Casa Gateway (i.e. total costs of \$371.50) is not properly chargeable to the Mardirossians, and (2) Plaintiffs have not shown the rest of the charges (i.e., personal service of the motion for summary adjudication to attorneys Kavcioglu and Feit, which total \$212.25) are reasonable or necessary. (Motion, pp. 14:18-15:13.)

The request to tax costs of \$371.50 for personal service of Casa Gateway is GRANTED for the same reasons the Court has granted the request to tax the motion and filing fees incurred against that defendant.

The request to tax all other personal service fees is DENIED pursuant to the Court's discretionary authority. Plaintiffs have shown the rest of the fees were reasonable and necessary for the conduct of litigation. (See Opposition, pp. 8:19-9:9 [explaining that personal service was necessary to comply with the statutory deadlines for service and to ensure that all counsel were served in this action involving multiple counsel].)

Conclusion

Based on the foregoing, the Motion to Tax Costs is GRANTED IN PART and DENIED IN PART as follows. The request to tax costs of \$2,787.32 – consisting of \$1,027.50 of filing and motion fees, \$90 of service of process costs, \$1,026.95 of models and enlargements costs, \$167.97 of electronic filing fees, \$103.40 costs for LASC Online Documents Access, and \$371.50 of personal service costs – is GRANTED. The motion is otherwise DENIED.

Plaintiffs are awarded costs of \$25,649.07 (i.e., the requested costs of \$28,436.39 minus the taxed costs of \$2,787.32).

Moving party to give notice.

Dated: July 22, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court